TOWN OF THUNDERBOLT
REGULAR MONTHLY MEETING
WEDNESDAY, FEBRUARY 9, 2022
6:30 PM

REGULAR MEETING

1. **Call to order –**

   Mayor Williams call meeting to order at 6:30 pm.

2. **Roll Call by Presiding Officer with Invocation, followed by the Pledge of Allegiance**

   Those in attendance were Mayor, Dana Williams and Council Members Bethany Skipper-Greer, David Crenshaw, Larry Ward, Ed Drohan, James Lavin and Brooks Barbaree. Staff in attendance were Town Administrator, Bob Milie; Town Attorney, Charlie Barrow; Clerk of Council, Deatre Denion, Accounts Payable Manager, Katina Spaulding; Fire Chief, Andrew Bateman and Police Chief, Sean Clayton.

3. **Approval of Meeting Agenda**

   Mayor Williams asked for a motion to approve the meeting agenda. **Council Member Ward made the motion with a second from Council Member Crenshaw. The motion passed unanimously.**

4. **Approval of Minutes from Previous Meeting:**
   Minutes of January 12, 2022 and January 15, 2022

   Mayor Williams asked for a motion to approve the last month's meeting minutes. **Council Member Ward made the motion to approve with a second by Council Member Crenshaw. The motion passed unanimously.** Mayor Williams realized he did not include the workshop meeting minutes and asked for another motion to approve them. **Council Member Ward made the motion to approve the workshop meeting minutes with a second by Council Member Crenshaw. The motion passed unanimously.**

5. **Presentations:**
   a) **Arbor Day Proclamation**

   Mayor Williams read a proclamation in celebration of Arbor Day on February 18, 2022.

   b) **Finance Report**:

Shannon Brett; Holland, Bromley, Barnhill & Brett; provided the Finance Report. The following have been completed: year END payroll and bank accounts have been reconciled., 2021 will be wrapped up by March 7. Ms.

Brett stated they have recommended two software packages they feel will work best if the Town chooses to change their current software. Council Member Lavin asked about streets budget. Town Administrator Milie explained Public Works has water, sewer, stormwater and streets. The budget is divided into those three services. Council Member Crenshaw asked if the adjustments have been made to last years budget. Ms. Brett stated the adjustments were being finished today.

6. **Planning and Zoning**

   a) **Petitioner:** Tim Fleming
   Request: Approval of 5 ft off rear setback
   Parcel Involved: 3-0007-02-004
   Location: 3208 Robertson Ave

Tim Fleming, 3208 Robertson Ave, explained he is trying to add a back porch to the back of his house. It needs a five foot rear variance for the corner of the porch. **Council Member Drohan made the motion to approve the petition with a second by Council Member Ward.** Council Member Lavin asked about what is considered a hardship for a variance. Town Attorney Barrow points out it does not have to be a financial hardship. It could be due to the shape of the property. Geneva Golden, 3126 Gilbert Street, asked about setback requirements. It was explained the setback requirement is 25 feet in the rear. Mayor Williams called the vote. **The motion passed unanimously.**

   b) **Petitioner:** AAA Sign Co. Inc.
   Request: Approval of façade signs
   Parcel Involved: 3-0003-07-005
   Location: 2201 E. Victory Dr

Bobbie Stevens with AAA Sign Company, explained the client wishes to place façade signs on several sides of the building. The sign is lettering not a solid rectangle sign. The logo over the letters is what makes the façade signs larger than the allowed size. The sign is less than 10% of each side. **Council Member Ward made the motion to accept signage request with a second from Council Member Crenshaw.** Council Member Drohan stated this is one of the issues when the Victory Drive District was created. Clerk of Council Denion explained Building Inspector Fischer and herself discussed making changes on how signs are measured. **The motion passed unanimously.**

   c) **Petitioner:** Michael Johnson
   Request: Approval of subdivision of lot
   Parcel Involved: 3-0001-01-002
   Location: Levy Ave (Downing Ave.)

Michael Johnson, 415 Bonaventure Rd., was present. He explained he wishes to subdivide the lot into 13 individual lots. **Council Member Crenshaw made the motion to approve the subdivision with a second by Council Member Ward.** Council Member Drohan recused himself due to owning adjacent property that might have a financial implication. Council Member Ward asked what size are the homes he plans to build and the distance between each home? Mr. Johnson stated three to four bedroom homes with the distant of 14 feet between each home. Town Administrator Milie asked if they look like the homes on the Savannah side of Downing. Mr. Johnson stated yes, they will. They will be built up 4 ft. Stella Lavin, 3125 Robertson Ave. asked if he will be coming back for more variance. Geneva Golden, 3126 Gilbert Street, asked about water usage. Town

Administrator Milie stated Ms. Golden's question is a valid question. There will be 13 lots and Mr. Johnson will have to provide some infrastructure improvements for the Town's ISO rating. The numbers were looked at but this project would not place a strain on the resource. Council Member Barbaree asked if they had a project similar. Mr. Johnson stated the project across is not theirs but is similar to what they will be building. Council Member Barbaree asked what is the time frame for completion. Mr. Johnson stated it will take about a year and half. Council Member Skipper-Greer asked if they are one family and it is R-3. Clerk of Council stated the zoning allows for the subdivision. These subdivided lot sizes will only allow for one family dwelling. **The motion carried with unanimous vote.**

7. **Debate Agenda:**

a) **Approve New Home Occupation Permit at 216 Bonaventure Rd**

Jeffrey Woods from 216 Bonaventure Rd is seeking a home occupation to arrange flowers. Mr. Woods explained there will be no retail store, clients coming and going or dumpster. Council Member Drohan asked if it is a cottage industry? Mr. Woods stated it was. **Council Member Drohan made the motion to approve the home occupation permit with a second by Council Member Barbaree. The motion passed unanimously.**

b) **Outdoor Activity Event Permit and Waiver for Thunderbolt Museum Society**

Ann Maria Thomas asked Council to put the permit on hold until a few items are worked out. She did announce the museum will be open soon. Sweatshirts are on sale. All applications and permits updated.

c) **Discussion on Zoning and Other Town Owned Properties**

Council Member Drohan stated it wasn't too long ago we had the third water break on Shell Road. There was discussion on what is going on in the area. Public Works Manager Crosby stated the line needs to be replaced. Council Member Drohan explained he took a look at this area and those properties off Clars and Colorado. There are properties that are not accessible due to lack of road access. There are concerns with homeless living back in the area. This could be a safety issue. Twenty of these thirty-one properties were bought in a tax sale. Many of the houses are uninhabited. Most of these properties are worth less than $5,000. The adjacent property to the north is thriving with businesses. He thinks there is an opportunity here. Extend the commercial zoning from the north would increase the property value. The Town needs to treat this as we do River Dr. **Council Member Drohan made the motion to send to P & Z to review these properties consider a change in zoning. Council Member Ward seconded the motion.** Council Member Crenshaw stated it needs to be researched. Beth Goette, 3006 Leonard St, stated the owners of the property need to be notified of the Town's decision. Clerk of Council Denion stated whenever there is a meeting concerning areas, owners are always notified. Buddy Gallaher, 25 Bonaventure Rd, thought he stated the houses on Shell Road was dilapidated. Council Member Drohan stated not Shell but the houses behind Shell off Clars. Geneva Golden, 3126 Gilbert Street, asked about the houses near Rev. Small's church. Staff stated his property is in Savannah. **The motion passed unanimously**.

Council Member Drohan stated the need to look into the property on the corner of Whatley and Sunset. The Town owns three parcels. Council needs to decided what they want to do with them. There is about 11 acres. They are not apart of any federal or state government to maintain wetlands. Council Member Drohan asked if this should be sent to P & Z. There is a need to identify what this properties are and options of what it can be built on them, if anything. Beth Goette 3006 Leonard Street, stated These properties had been looked at for the Warsaw Trail. These properties are not buildable. She continued with even a sidewalk could not be put in along Sunset due to an endangered species. **Council Member Drohan motioned for these properties to be looked into seeing if they can be wetland mitigation bank. Council Member Ward seconded the motion.**

Council Member Crenshaw stated it is a good move. Council Member Skipper-Greer stated there is trash along the area. **The motion passed unanimously.**

8. **Town Administrator Report:** Town Administrator, Bob Milie

Town Administrator Milie stated January is a foundation month. He explained he has started setting up for website overhaul, changing AV equipment and began event planning. Council Member Crenshaw stated Town Administrator's report is precise and to the point.

9. **Department Report** – Written Reports Submitted

by: Police / Municipal Court / Neighborhood Watch – Sean Clayton, Chief of Police

Chief Clayton explained there was an armed robbery at Enmarket. City of Savannah has also had several robberies around the Victory Dr. and Skidaway area. Council Member Drohan asked about vagrants behind Target if they might be involved. Chief Clayton stated they are not. Council Member Drohan asked about safety on Clars and Colorado. Chief Clayton stated they have not had any calls in a while and they have not found any vagrants back there. Council Member Lavin asked if they patrol the area. Chief Clayton stated they do. Mayor Williams read a thank you note from Dan Carter for Officer Foran staying with him and helping him when his vehicle shut down.

Fire –Fire Chief, Andrew Bateman

Mayor Williams thanked Chief Bateman and Fire Department for all they have been doing beyond answering medical and fire calls.

Public Works Department – Oscar Crosby, Public Works Manager

Council Member Crenshaw asked about the close out of groundwater vs Savannah Water usage. Town Administrator Milie stated the Town bought 18 million gallons from Savannah and 128 million gallons of Sewage.

Town Administrator Milie stated the lining of the sewer lines will begin in the second quarter.

Mayor Williams stated Public Works has been working hard dealing with water line breaks.

Mayor Williams stated he wanted to point out at the beginning of the year, Town Hall Administration had two individuals come down with COVID. This left one staff member holding down the office. He wanted to recognize Katina Spaulding for all her hard work keeping everything going at Town Hall.

10. **Legal Report – Town Attorney**

11. **Mayor and Council –**
    a) Water & Sewer Committee – Council Member Drohan

Council Member Drohan gave the following presentation.

Graywater refers to domestic wastewater generated in households or office buildings from streams without fecal contamination, i.e., all household effluent except for the wastewater from toilets. Sources of graywater include sinks, showers, baths, washing machines or dishwashers.

As graywater contains fewer pathogens than domestic wastewater, it is generally safer to handle and easier to treat and reuse onsite for toilet flushing, landscape or crop irrigation, and other non-potable uses.

The application of graywater reuse in urban water systems provides substantial benefits for both the water supply subsystem, by reducing the demand for fresh clean water, and the wastewater subsystems by reducing the amount of wastewater required to be conveyed and treated. Treated greywater has many uses, such as toilet flushing or irrigation (Wikipedia).

These systems generally have an inline filter that removes particulate from the effluent. This filtered effluent then is then available for passive residential irrigation or adapted to be utilized for flushing toilets.

Graywater Realities in General and in Thunderbolt

The percentage of water used for tubs and showers makes up about 60% of the total water usage in the average home. Using a conservative 6500 gallons for the average home in Thunderbolt, we come up with the following numbers:

6500×.60 equals 3900 gallons/ month = 46,800 gallons/year per residence.

If there were but 100 Conservation Citizens in Thunderbolt who participated in a landscape graywater program that would equal to 4,680,000 fewer gallons of sewage processed by Savannah per year. The costs of sewage processing we are charged by Savannah equals $.005856 per gallon. This equals a potential savings of about $22.84 per average residential consumer per month against the current fees paid by Thunderbolt to the City of Savannah. Through the participation by 100 Conservation Citizens, that would equal about $27,406 in real savings to Thunderbolt every year. These savings would allow us to provide rebates to individuals interested in graywater systems for their homes. These rebates could be up to 100% of the projected savings with no net costs to the Town as these Conservation Citizens would still be participating in the system maintenance costs of W&S through the difference between their gross sewer charge and the rebate amount.

Graywater- The Long View

1. Water conservation is the reality of any successful W&S system.
2. Funding models in Thunderbolt need to be flexible enough to engage marginal savings as our costs become more and more dependent on what the City of Savannah charges us for water and sewer services.
3. The potential savings from a Graywater option are better than dollar for dollar as residential sewer fess will always exceed any rebate amount up to 100% even with an extended horizon.
4. The more homes that participate, the more the Town saves.

The Graywater Proposal

1- Allow some conservation idiot the opportunity to create a graywater system in his home utilizing only shower and tub effluent with a passive system that percolates into his surrounding yard area for the purpose of irrigation of flowers, shrubbery and grass (if any) growing in his yard. This needs to be someone so conservation conscious that he would build this system with his own funds.
2- Use the results of this pilot project to estimate the costs of building these systems for the average residence.
3- Compare the outcome of this pilot project to the proposal assumptions to provide the statistics to validate the proposal and determine its viability.

4- If viable, utilize this pilot project to model an ordinance allowing for the expansion of residential graywater in Thunderbolt.

Mayor Williams thanked Council Member Drohan for his passion and work for water conservation.

Mayor Williams asked for a motion and a second to adjourn to Executive Session. **Council Member Crenshaw made the motion with a second by Council Member Ward. The motion passed unanimously.**

Mayor asked for a motion and a second to return to open session. Council Member Ward made the motion with a second from Council Member Crenshaw. The motion passed unanimously.

Executive Session- Mayor requests a motion and a second to recess into executive session for the purpose of Legal and/or Personnel matters.

Mayor Williams read a statement in answering a filing from 43 citizens

"I would like to begin by thanking the Town Administrator, Bob Milie, for his diligent effort in making sure that we were able to hold our January Town Council meeting. Mr. Milie spent the entire day working with IT trying to get the remote platform set up as our Town Clerk and Town Receptionist were both our with COVID. Mr. Milie had never conducted a meeting in this manner and in spite of the circumstances was able to make it happen. In addition to two of the three Town Hall employees being absent with COVID, myself and two other members of council were also out with it as well. Despite having a 103 fever due to having the flu and COVID simultaneously, I decided not to postpone the meeting because I knew that several vendors and citizens had made plans that needed Council approval in order to move on with their projects without suffering setbacks and financial delays. It wasn't perfect but we made it through.

On Thursday, February 3, 2022, former Mayor Beth Goette delivered a letter that she and several other citizens signed calling out several mistakes that I made as my first time as Mayor while doing so remotely and suffering from flue and COVID.

The first issue was the PIN to join the meeting was posted incorrectly on the Town website. The email sent to Mayor, Council, Staff and presenters had the correct link and PIN to join the meeting. When the PIN was added to the website a keystroke error caused one number to be off which is why people initially had an issue log in on. As soon as the mistake was discovered it was immediately corrected. Second it was suggested this was done intentionally so Council could vote on Mayor Pro Tempore without asking for public input, which has never been done nor is it customary anywhere else to my knowledge. It was also suggested I made a mistake by moving the selection of the Mayor Pro Tempore without asking for a motion and a vote to move an item. The Town Attorney stated a motion and vote were only necessary if adding an item to the agenda. It was also suggested myself and Council needed a refresher course on Town elections and Council Meetings, however as stated in the Town Charter: Section 6.- Town Council; Power; compensation; Mayor Pro Tempore. As the first regular meeting of the town council following a regular election of a mayor and aldermen or as soon thereafter as practicable, the council shall select one of its members as mayor pro tempore who shall, in the event of the absence, disability or disqualification of the mayor, perform all duties and exercise all rights, powers and privileges of the office of mayor.

We followed the Town Charter to the letter. A Mayor Pro Tempore was selected by Council and agreed upon by a majority of 4 to 3. I was instructed by GMA to always follow the Charter and that is exactly what we did. The suggestion that it was done so nefariously is outright wrong and was not done to hurt or wrong anyone. We all have a great deal of respect for Councilman Lavin. After the meeting, Councilman Drohan informed me that he chose Councilman Crenshaw because of his long service to the Town and his vast knowledge of how the Town

operates. He also felt in event the Mayor Pro Tempore had to fulfill his duties as Mayor, Councilman Crenshaw would be able to step in and sever the Town without any problems

In response to the suggestion, I had some ulterior motive for moving the selection of Mayor Pro Tempore to the beginning of the meeting, it was done simply because I was very sick, we were using a new platform for the meeting and the Town Administrator was conducting the hybrid meeting for the first time with no assistance. I wanted to ensure in the event I felt too ill to continue or we lost communication the Mayor Pro Tempore would be able to continue the meeting.

In closing I would like to thank everyone again for their patience and understanding for the last month's meeting. Unfortunately, several of use contracted COVID which added to the stress and difficulty of our fist meeting as the newly elected Mayor and Council of Thunderbolt. We made a few mistakes, but given the circumstances, I think we did the best we could. Going forward, we will make every effort to continue to follow the Town Charter, our ordinances and the Law. It is our sworn duty and obligation to represent ALL of the citizens of Thunderbolt equally and to the best of our ability and that is exactly what we will do.

12. **Ratification of the Vote Regarding Mayor Pro-tem**

Mayor Williams opened the floor for any and all nominations for Mayor Pro-Tem. **Council Member Drohan made the nomination for Dave Crenshaw to be Mayor Pro Tem. Council Member Ward seconded the motion.**

Linda Buttersworth, 3121 Robertson Ave, stated the website had the wrong PIN #. She also stated if there was to be a change in how the Mayor Pro-Tem was selected it should have been done in December. No one provided a reason for the change. Town Administrator Milie explained Council followed procedure in the selection of the Mayor Pro-Tem, just did not follow tradition.

Geneva Golden, 3126 Gilbert Street, stated decisions were made without the public knowing about it.

Stella Lavin, 3125 Robertson Ave., stated she was unable to get on virtually but was able to listen through Council Member Lavin connection. She was shocked by the decision and did more research. She listed several decisions made by Council stating there was nothing wrong or illegal but it looks bad.

Maury Gallaher, 25 Bonaventure Rd., congratulated Mayor and Council. He stated he has lived in Thunderbolt for 78 years. He was on Council for 8 years. In that time, the person that had most votes was Mayor Pro. There was no discussion on who Mayor Pro-Tem would be. He asked Council to reconsider their choice. He stated Council has the authority to do what they want to do but tradition is important.

Ms. Hayes, 2008 Hayes St. The people have had a chance to air their feelings. I love the Town of Thunderbolt. I am 86 years old. I walk with God. If I have complaints, I take it to the individual I have the issue with. We need to come together and walk with God.

Council Member Drohan stated he spoke with James Lavin earlier in order to clear the air. People have stated they do not understand why I made the decision. When it came clear there were 6 people running of 6 positions during COVID, I spoke with some people who were running about needing someone that can take over if need be and know all the history and knowledge of the Town finances. In references to Stella Lavin's response, it looked bad. When I first approached Council Member Crenshaw about being Mayor Pro-tem, he said no. I persevered. My rationale, this was a different election, whether you agree with me or not. I wanted a dependable, knowledgeable person. I told James Lavin this was not personal.

Stella Lavin, 3125 Robertson, stated Council Member Drohan should have clarified ahead of time. You seem to have spoken with everyone but James Lavin.

Town Administrator Milie stated you all voted or did not vote for Council to make decisions for this town, even if they wish to change tradition. A majority vote decides those decision and a majority voted Council Member Crenshaw as Mayor Pro-tem. I am hearing that is not what you wanted, but sometimes you do not always get what you want. They did it in the best interested of the Town.

Council Member Ward stated Council Member Drohan spoke to him before meeting with his suggestion for Mayor Pro-tem.

Beth Goette, 3006 Leonard Street, stated she listened to the tape. No one gave a reason for the change. She pointed out other communities follow this process. In our eyes there is no reason for what Council did. That is why it bothers us. We want justification for why you did what you did. In our eyes it does not look good. In our hearts we thought you would address our concerns and reconsider your decision. Council Member Drohan objected to her allegation. Your comment suggests I still have not attempted to explain as I did. As I did with Mrs. Lavin, just because it does not meet your wishes, does not mean I have not explained it. I understand your feelings but my decision is the same to vote for David Crenshaw.

Kristina Johnson, Gragg Street, stated perception is the issue. What I am hearing is you are not taking the communities input.

Geneva Golden, 3126 Gilbert Street – to Council, when you use the first person, you are still representing the Town. You have to listen to us. We need to come to agreement.

Mayor Williams stated Council does listen. You need to understand you represent a 10th of one percent of Thunderbolt and Mayor and Council represents the entire Town. Mayor Williams called for the vote. **Council Member Crenshaw recused himself. The vote passed unanimously.**

Mayor Williams asked for a motion and a second to adjourn the meeting. **Council Member Ward made the motion to adjourn with a second from Council Member Skipper-Greer.**

13. **Adjournment:**

The meeting adjourned at 9:21 pm.

Mayor, Dana Williams

Clerk of Council, Deatre N. Denion